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|    |                                                                               | Moving Party to give notice.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 52 | <b>De La O Ojeda vs.<br/>2100 E 4th St<br/>92705 LLC<br/><br/>24-01398443</b> | <p><b>Motion for Leave to File Cross Complaint</b></p> <p>The Motion for Leave to File a Cross-Complaint brought by Defendant 2100 E. 4th St 92705 LLC is GRANTED, pursuant to Code of Civil Procedure section 428.50.</p> <p>Defendant seeks leave to file a Cross-Complaint against the Consulate of the United Mexican States in Santa Ana, seeking: (1) Equitable Indemnity; (2) Apportionment of Fault; (3) Express Indemnity; and (4) Declaratory Relief. (§3 of Arnall Declaration and Exhibit 1 thereto).</p> <p>The proposed Cross-Complaint specifically identifies the instant action and asserts proposed Cross-Defendant shares liability for the injuries sustained by Plaintiff. (See ¶2, ¶7, ¶10 and ¶15-¶16 of Proposed Cross-Complaint [Exhibit 1 of Arnall Declaration]). Per Counsel, “[t]he basis of the proposed cross-complaint is contractual indemnity and defense owed by the Consulate pursuant to the terms of the written lease entered into between Defendant and the Consulate....” (¶5 of Arnall Declaration).</p> <p>“Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.)</p> <p>“An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.)</p> <p>Based on the above, the proposed pleading qualifies for leave pursuant to Code of Civil Procedure section 428.10, subdivision (b)(1).</p> <p>Additionally, as no prejudice is apparent from the request, leave to amend is GRANTED. Defendant shall separately file and serve their Proposed Cross-Complaint (¶3 of Arnall Declaration and Exhibit 1 thereto), within 10 days of this order.</p> |
| 53 | <b>Mirzadeh vs.<br/>Sandoval<br/><br/>25-01507072</b>                         | <p><b>Demurrer to Complaint &amp; Motion to Quash Service of Summons</b></p> <p><b>Demurrer to Complaint</b></p> <p>Defendant Capital Aspects Limited Liability Co. (“Capital Aspects”) demurs to the first and second causes of action asserted in the Complaint filed by Moshen Mirzadeh. The demurrer is SUSTAINED. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling.</p> <p>In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

First Cause of Action for Undue Influence and/or Lack of Capacity

The Complaint alleges Capital Aspects engaged in conduct amounting to undue influence over Ghasem Mirzadeh's ("Decedent") within the meaning of Welfare and Institutions Code section 15610.70. (Compl. ¶ 31.) The Complaint specifically identifies actions by Defendants Soheyra Sandoval, Zahra Mirzadeh, Syed Ahmad Hashemian, and Farkhondeh Mirzadeh that constitute "excessive persuasion" that overcame decedent's free will when decedent was ill, medicated, and mentally impaired. (*Id.* at ¶¶ 30-31.)

"Undue influence" is defined as "excessive persuasion that causes another person to act or refrain from acting by overcoming that person's free will and results in inequity." (Welf. & Inst. Code, § 15610.70, subd. (a).) In determining whether a result was produced by undue influence, section 15610.70 directs courts to consider: (1) the victim's vulnerability; (2) the influencer's apparent authority; (3) the tactics used by the influencer; and (4) the inequity of the result. (Welf. & Inst. Code, § 15610.70, subd. (a)(1)-(4).) The Complaint does not allege Capital Aspects exerted any authority or used any tactics to persuade decedent to act. The demurrer is sustained to the first cause of action.

Second Cause of Action for Financial Elder Abuse

The Complaint alleges Capital Aspects committed financial elder abuse by taking, assisting, or retaining property of an elder by means of undue influence and wrongful appropriation. (Compl. ¶ 44.) Plaintiff identified particular actions taken by Defendants Soheyra Sandoval, Zahra Mirzadeh, Syed Ahmad Hashemian, and Farkhondeh Mirzadeh. (*Id.*)

Financial abuse of an elder occurs when a person "[t]akes, secretes, appropriates, obtains, or retains ... real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70." (Welf. & Inst. Code, § 15610.30, subd. (a)(3).) The Complaint does not allege any acts of undue influence by Capital Aspects. The demurrer is sustained as to the second cause of action.

Defendant Capital Aspects Limited Liability Co. to give notice.

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**Motion to Quash Service of Summons**

Defendant Farkhondeh Mirzadeh's motion to quash service of the Summons and Complaint on Defendant Farkhondeh Mirzadeh is DENIED.

A court lacks jurisdiction over a defendant if there has not been proper service of process upon that defendant. (See *Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.) Therefore, "[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her . . . ." (Civ. Proc. Code, § 418.10, subd. (a); see *Board of Supervisors v. Superior Court* (1994) 23 Cal.App.4th 830, 855, fn. 4.)

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|    |                                                                              | <p>Generally, “once a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant.” (<i>Bolkiah v. Superior Court</i> (1999) 74 Cal.App.4th 984, 991; see also <i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [same].) However, this burden shifts when a properly executed proof of service has been filed. “The return of a [registered] process server [] upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid. Code, § 647); see <i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.)</p> <p>On November 19, 2025, after the instant motion was filed, Plaintiff filed a properly executed proof of service showing service of the Summons and Complaint on Defendant Farkhondeh Mirzadeh via personal service. (ROA 39.) Katharyne Davis is a registered California process server. (<i>Id.</i>) Davis declares under penalty of perjury under the laws of the State of California that she personally delivered the Summons and Complaint to Defendant Farkhondeh Mirzadeh. (<i>Id.</i>) Plaintiff’s properly executed proof of service showing service of the Summons and Complaint on Defendant Farkhondeh Mirzadeh creates a rebuttable presumption that service was proper. (<i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390 [“Evidence Code section 647 provides that a registered process server’s declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration.”].)</p> <p>Defendant Farkhondeh Mirzadeh declares that she did not receive two copies of the notice and acknowledgement of receipt and that she did not execute a written acknowledge of receipt of summons and return it to Plaintiff. (Farkhondeh Mirzadeh Decl. ¶¶ 4-5 [ROA 35].) This is insufficient to rebut the presumption of proper personal service of the Summons and Complaint. The motion to quash service of summons and complaint is denied.</p> <p>Plaintiff to give notice.</p> |
| 54 | <p><b>Johnson vs. Darden Restaurants, Inc.</b></p> <p><b>23-01334261</b></p> | <p><b>Motion to Set Aside/Vacate Default</b></p> <p>The Motion to Set Aside Default brought by Defendant Christopher Zarate is DENIED as MOOT.</p> <p>The motion seeks to set aside a default entered against Defendant on December 2, 2025; however, no default is reflected in the record of this action. While the record indicates Plaintiff submitted a document for filing on December 2, 2025, this filing was rejected on December 10, 2025, with the stated reason being: “A motion was filed and set for hearing by the defendant.” (ROA No. 127.)</p> <p>The referenced motion was a Motion to Quash, which was filed by Defendant on August 21, 2025 (well in advance of the attempted default) and subsequently denied on January 16, 2026. (ROA No. 146.) Following the hearing on the Motion to Quash, Defendant’s Answer was accepted for filing on February 4, 2026. (ROA No. 149.)</p> <p>The continued presence of this motion on the Court’s calendar reflects multiple failings by Counsel.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |